

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of
Suspension of:**

COLUM MALEC, Moving Party

and

WASHINGTON UNIFIED SCHOOL DISTRICT,

Responding Party.

OAH No. 2025040005

**ORDER DENYING MOTION FOR IMMEDIATE REVERSAL OF
SUSPENSION**

Jennifer M. Russell, Senior Administrative Law Judge, Office of Administrative Hearings, State of California, heard this matter by videoconference on April 25, 2025. Costa Kerestenzis, Attorney at Law, Beeson, Tayer & Bodine, represented Colum Malec (Malec), the moving party. Ingrid A. Meyers, Attorney at Law, Dannis Woliver Kelley, represented the Washington Unified School District (District), the responding party.

On February 27, 2025, pursuant to Education Code (Code) section 44939, subdivision (b), the District filed a Statement of Charges containing allegations charging Malec with, among other things, immoral conduct in violation of Code section 44932, subdivision (a)(1). Pursuant to Code section 44939, subdivision (b), the District immediately suspended Malec without pay. Pursuant to Code section 44939, subdivision (c)(1), Malec served and filed with the Office of Administrative Hearings a Motion for Immediate Reversal of Suspension. Pursuant to Code section 44939, subdivision (c)(2), the District filed an opposition, to which Malec filed a reply.

Having considered the parties' written submissions and oral arguments, pursuant to Code section 44939, subdivision (c)(4), the Administrative Law Judge issues the following Order denying the Motion for Immediate Reversal of Suspension.

Standard for Conducting Review of Motion for Immediate Reversal of Suspension

1. The governing board of a school district has the authority to suspend immediately a permanent employee without pay upon its filing of written charges for dismissal on grounds of immoral conduct, conviction of a felony or of any crime involving moral turpitude, incompetency due to mental disability, willful refusal to perform regular assignments without reasonable cause, as prescribed by reasonable rules and regulations, or violation of Code section 51530, which imposes a prohibition against advocacy of communism with intent to indoctrinate. (Code, § 44939, subd. (b).) Reviewing the statutory scheme for tenured teacher dismissal, the California Supreme Court, in *Fontana Unified School District v.*

Burman (1988) 45 Cal.3d 207, 215-216, has affirmed if one of the grounds for dismissal pursuant to Code section 44932 is also one of those specified in Code section 44939, the school district may immediately suspend the employee without pay pending disposition of the dismissal proceeding.

2. Review of a motion for immediate reversal of suspension is “limited to a determination whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section.” (Code, § 44939, subd. (c)(1).)

3. Thus, review of a motion for immediate reversal of suspension is analogous to a demurrer, which tests the sufficiency of the allegations in a complaint. (*Pacifica Homeowners’ Ass’n v. Wesley Palms Retirement Community* (1986) 178 Cal.App.3d 1147, 1151.) Facts properly pleaded are accepted as true, but contentions, deductions, and conclusions of fact or law should be disregarded. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Conclusory characterizations of conduct as intentional, willful, or fraudulent are “patently insufficient.” (*Brousseau v. Jarrett* (1997) 73 Cal.App.3d 864, 872.) Where reading the allegations reveals the existence of an affirmative defense, the complaining party must plead around the defense by alleging specific facts that would avoid the apparent defense. (*Kirwan, supra*, 39 Cal.3d at 318.)

Facts Alleged in Statement of Charges

4. In this matter, the Statement of Charges alleges, while employed by the District as a Social Studies teacher and Department Chairperson, in March 2021, Malec text-messaged a parent and asked that parent to deliver a message to

another parent who made unspecified comments during one or more meetings of the District's Board of Trustees. Malec's message to the commenting parent is alleged as "to get fucked." The Statement of Charges further alleges when the parent tasked with delivering the message assured Malec the message would be delivered, Malec texted, "Make sure to include we already are working 12-14 hours days and weekends." The Statement of Charges alleges the parent to whom the message was delivered perceived Malec's "get fucked" comment as aggressive and threatening in nature and caused the parent concern for their safety and the safety of the parent's student and family.

5. The Statement of Charges additionally alleges Malec made several negative gender-based comments about one of his coworkers in 2023. The Statement of Charges alleges Malec said, "Sometimes her voice makes the hair on men's arms rise in our department." The Statement of Charges further alleges Malec "Told a male co-worker that a female co-worker was running against [Malec] for the position of union vice president because she hated men," Malec "Called three female co-workers the 'Ovarettes' based on their gender," and Malec "Showed a female co-worker a photograph of a bombing site."

6. The Statement of Charges additionally alleges, in 2024, Malec commented to a female colleague, who Malec was "well aware" had been subjected to sexual abuse and exploitation in the past and with whom Malec has "a quasi-supervisory connection," as follows: "Remember, I remind you of your pimp. We've never made love. If we did, we would move mountains. We would be unstoppable." The Statement of Charges alleges Malec's comments traumatized the female colleague.

7. The Statement of Charges additionally alleges Malec made a series of comments to the female colleague and others about the female colleague's race approximately two to four times monthly between August 2022 and March 2024. The Statement of Charges alleges Malec told this female colleague to confront another teacher because she is a person of color and encouraged the female colleague to seek union or work opportunities because of her race and ancestry. Statement of Charges alleges Malec told her to "be in the union, you are a person of color, we need more represented"; she "fits into a special category as a woman and a minority"; she "could relate to Punjabi student[s] differently"; she "would have different opportunities as a person of color because the workplace needs people of color"; and she "had certain advantages as a person of color."

8. The Statement of Charges additionally alleges, in 2017, Malec "flipped off (indicating 'fuck you') his co-worker and an aide. Witnesses reported Malec engaged in a variety of inappropriate conduct of a sexual nature including the following: 'smacking the top' of an employee's thigh, putting his hand around an employee's waist while commenting that he wanted to 'coerce her into leadership,' called employees while intoxicated on multiple occasions, made inappropriate sexual comments to female employees, and made additional comments about co-workers' race." The Statement of Charges further alleges Malec commented to a co-worker that she was "White or a person of color when it suited her."

9. The Statement of Charges additionally alleges, in 2024, several of Malec's colleagues expressed fear of Malec and his treatment of women to the District's current Assistant Superintendent.

Cause Exists for Immediate Suspension Based on Certain Allegations of Immoral Conduct

10. In cases involving the dismissal of a school district's permanent employee, "immoral conduct" has been defined generally as "that which is hostile to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or a willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare." (*Board of Education of the San Francisco Unified School District v. Weiland* (1960) 179 Cal.App.2d 808, 811.)

11. In this matter, the central allegations in the Statement of Charges concern Malec's obscene and profane commentaries and conduct and Malec's eroticization and racialization of District employees. If true, these allegations, separately and in the aggregate, evince indecency, meaning obscene or indecorous behavior; hostility, meaning menacing or adversarial attitude; and an otherwise flagrant and shameless demonstration of moral indifference.

12. The Statement of Charges on its face suggests the existence of an affirmative defense with respect to facts alleged to have occurred in 2017 and 2021.

13. Code section 44944, subdivision (a)(5), in pertinent part, provides the following:

No testimony shall be given or evidence introduced relating to matters that occurred more than four years prior to the date of the filing of the notice [as provided for in section 44934]. Evidence of records regularly kept by the governing board concerning the employee may be introduced, but no decision relating to the dismissal or suspension of any employee shall be made based on charges or evidence of any nature relating to matters concerning more than four years prior to the filing of the notice.

14. Thus, Code section 44944, subdivision (a)(5), prohibits the District from introducing evidence relating to matters occurring more than four years before February, 27, 2025, when it filed notice of its intention to dismiss Malec. Code Section 44944, subdivision (a)(5), further bars dismissal of Malec for alleged events occurring more than four years before the February 27, 2025 notice was filed. As pleaded, allegations of Malec's conduct occurring in 2017 and 2021 are time-barred and thus insufficient to sustain Malec's immediate suspension on the basis of immoral conduct.

15. The remaining pleaded facts, which the Statement of Charges alleges occurred in 2022, 2023, and 2024, if true, are sufficient to sustain Malec's immediate suspension on the basis of immoral conduct.

16. Based on the foregoing, good cause exists to deny the Motion for Immediate Reversal of Suspension.

ORDER

The Motion for Immediate Reversal of Suspension in OAH case number 2025040005 is denied.

DATE: **04/29/2025**

A handwritten signature in cursive script that reads "Jennifer Russell".

JENNIFER M. RUSSELL

Senior Administrative Law Judge

Office of Administrative Hearings